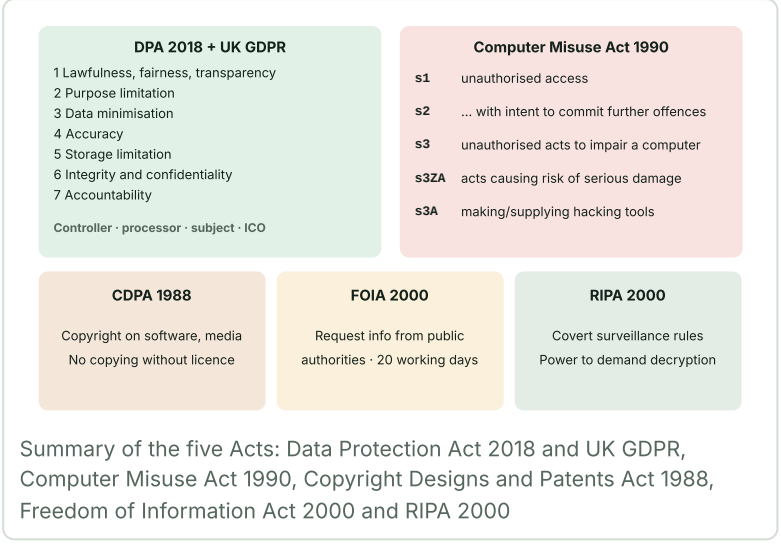
Legislation: data protection, computer misuse, copyright, FOI and RIPA

IS17 FACT FILE

Specification: students should be able to

- Describe the principles, rights and roles in the Data Protection Act 2018 and UK GDPR
- Describe the offences under the Computer Misuse Act 1990
- Describe the purpose of the Copyright, Designs and Patents Act 1988, the Freedom of Information Act 2000 and the Regulation of Investigatory Powers Act 2000
- Apply legislation to scenarios involving information systems

Key words: data subject, data controller, data processor, personal data, special category data, lawful basis, Information Commission (formerly the ICO), unauthorised access, copyright, software licence, freedom of information, interception



Summary of the five Acts: Data Protection Act 2018 and UK GDPR, Computer Misuse Act 1990, Copyright Designs and Patents Act 1988, Freedom of Information Act 2000 and RIPA 2000

Data protection

The UK GDPR and the Data Protection Act 2018 govern the processing of personal data about living individuals. Data controllers must follow seven principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality; and accountability. Data subjects have rights including being informed, access, rectification, erasure, restriction, portability, objection and rights about automated decisions. The ICO regulates compliance. The Data (Use and Access) Act 2025 has amended parts of the law, with changes phased in.

Computer Misuse Act 1990

The Computer Misuse Act creates offences of unauthorised access to computer material (section 1), unauthorised access with intent to commit or facilitate further offences (section 2), unauthorised acts intended to impair the operation of a computer, such as spreading malware or denial-of-service attacks (section 3), unauthorised acts causing or risking serious damage (section 3ZA) and making, supplying or obtaining tools for these offences (section 3A). Penalties increase with seriousness, up to life imprisonment under section 3ZA.

Copyright, FOI and RIPA

The Copyright, Designs and Patents Act 1988 protects creators' works, including software, from being copied, adapted or distributed without permission; software is used under licence. The Freedom of Information Act 2000 gives the public the right to request information held by public authorities, normally answered within 20 working days, subject to exemptions. The Regulation of Investigatory Powers Act 2000 regulates covert surveillance and the power to require encrypted data to be decrypted, balancing investigation against privacy.

T Key terms from the mark schemes

Personal data
Any information relating to an identified or identifiable living individual.

Data controller
The person or organisation that decides the purposes for which, and the way in which, personal data is processed.

Data processor
A person or organisation that processes personal data on behalf of a data controller.

Special category data
Personal data needing extra protection, such as health, ethnicity, religion, political opinions, trade union membership, genetic and biometric data.

Freedom of Information Act 2000
UK law giving the public the right to request recorded information held by public authorities, subject to exemptions.

Data subject
The living individual whom personal data is about.

Computer Misuse Act 1990
UK law creating offences of unauthorised access to computer material, access with intent to commit further offences, and unauthorised acts that impair computers.

Exam focus

Name the precise Act and the relevant principle, right or section, then apply it to the scenario: 'the school has breached integrity and confidentiality because it failed to secure pupils' health data, which is special category data'. Avoid inventing principles such as 'data must be kept secure for six months'. Do not confuse the Freedom of Information Act (public authorities' information) with a subject access request under data protection law (your own personal data). Learn the roles: controller, processor, subject, ICO.

? Check yourself

1. State four of the seven data protection principles. [4]
2. Explain the difference between a data controller and a data processor. [2]
3. A pupil uses a teacher's password to log in and change their exam marks. Identify which offences under the Computer Misuse Act 1990 have been committed and explain why. [3]

Answers: 1. Any four from: lawfulness, fairness and transparency (1) / purpose limitation (1) / data minimisation (1) / accuracy (1) / storage limitation (1) / integrity and confidentiality (security) (1) / accountability (1). 2. A data controller decides why and how personal data is processed (the purposes and means) and is responsible for compliance, e.g. a school (1) / a data processor processes personal data on behalf of the controller, following its instructions, e.g. a cloud provider or payroll company (1). 3. Section 1: unauthorised access to computer material – the pupil logged in with a password they were not entitled to use (1) / Section 2: unauthorised access with intent to commit or facilitate a further offence – they accessed the system intending to change their marks, i.e. fraud/deception (1) / Section 3: unauthorised acts with intent to impair the operation of a computer / the reliability of data – they altered the exam marks stored on the system (1).